

The parties were free to stipulate to continue or stay the hearing on Defendants motion o tax, but did not do so, and nothing Defendants cite supports the proposition that the Court should decline to hear the motion as noticed. It is also not entirely clear that a separate appeal would be required in this instance. (See, e.g., *Grant v. List & Lathrop* (1992) 2 Cal.App.4th 993, 998.) In any event, the question of whether Defendants will be required to file an additional notice of appeal is not before the Court, and does not require postponement of the motion to tax hearing.

Order

Defendants' motion is **granted in part and denied in part**. The motion is granted as to recordation of the judgment, or any easement instrument derived from the judgment. The motion is denied as to the hearing on Defendants' motion to tax costs, which shall proceed as scheduled on May 28, 2026.

Nothing in this order shall be construed to prevent Plaintiff, or her household members, guests, or invitees, from continuing to use the Muir Oaks roads to access her property at 4784 Venner Road during the pendency of the appeal.

18. 9:00 AM CASE NUMBER: MSC20-02134

CASE NAME: TERESA NEENO VS. BARRY HACK

***HEARING ON MOTION IN RE: TAX COSTS**

FILED BY: KINDER, JUSTIN S.

TENTATIVE RULING:

Defendants Michael Kylo, Tammy Kylo, Robert French, Julie French, Paul Engler, Rita Engler, Branon Long, Justin S. Kinder, as Trustee of the Justin S. Kinder Trust dated August 11, 2015; Vicky D. Jared, as Trustee of the Jared Family Revocable Trust U/A/D 08-09-07; Marc D. Palechek And Micah V. Palechek, as Co-Trustees of the Palechek Revocable Family Trust dated May 19, 2015; Gilbert French And Patricia French, as Co-Trustees of the Gilbert French and Patricia French Trust Dated August 11, 2004; David Timothy Hjortsvang And Erick Warren Hjortsvang, as Co-Trustees of the Hjortsvang Trust move to strike, or in the alternative, tax costs. Judgment was entered in favor of Plaintiff Teresa Neeno in this Quiet Title action on November 6, 2025 and she filed a Memorandum of Costs totaling \$72,034.56.

Pursuant to Code of Civil Procedure sections 1034 and 1033.5, certain costs may be claimed by a prevailing party. The party filing the cost memorandum bears the initial burden of showing that the statute allows the item and is proper on its face. (*Ladas v. California Sate Auto. Assn.* (1993) 19 Cal.App.4th 761, 774-776.) For items that are expressly permitted by statute, the burden is on the objecting party to establish that the costs were not necessary or reasonable, based on evidence. (*Litt v. Eisenhower Med. Ctr.* (2015) 237 Cal.App.4th 1217, 1224.) For items that are not expressly allowed, the burden of proof is on the party claiming them to show that they were reasonable and necessary. (*Foothill-DeAnza Community College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29.)

This matter initially involved dozens of defendants. Some were defaulted and some dismissed after settlement. The remaining Defendants, named above, are 15 individuals representing 9 households. Defendants argue at various points that costs and fees relating to the dismissed or defaulted

defendants are not allowable. That argument oversimplifies the question. It is not universally true that costs relating to defaulted or dismissed defendants should not be allowed. It will depend on the type of fees or cost. The costs will be addressed in turn.

Service of Process

Plaintiff seeks costs relating to service of process on all defendants. The costs relating to the *initial* service of process and all service on the remaining Defendants—\$11,270.59—are allowable. Although Plaintiff *could* have sought alternate means—such as notice and acknowledgement of receipt—there is no showing that the form of service sought by Plaintiff was improper.² The Court will, however, strike costs in the amount of \$5,295.08 because this service arose out of a pleading error by Plaintiff *and* the costs relate to dismissed or defaulted defendants. Code of Civ. Pro. § 1033.5(a)(4).

Filing and Motion Fees

Initially Defendants argued that filing and motion fees relating to dismissed or defaulted defendants are not allowable. On reply, they provided no substantive information to separate out these fees. These costs will be allowed except where they clearly relate to default filings or dismissals of defendants, as those could have been sought through default proceedings or settlement negotiations. Code of Civ. Pro. § 1033.5(a)(1). The court sees the following relevant fees to strike: 10/11/2022 for \$7.71, 7/27/2023 for \$12.69, 8/3/2023 for \$12.69, 5/21/2024 for \$13.82, 10/11/2024 for \$14.45

Court and Agency Fees

Plaintiff seeks reimbursement of court and agency fees. To the extent these involve fees for defaults, this is the same determination as above. Plaintiffs concede that if “some fees relate solely to dismissed defendants, a proportional allocation would be appropriate.” Therefore, on Defendants’ showing, these will be excluded. The remainder will be allowable. Code of Civ. Pro. § 1033.5(a)(14). The court sees the following relevant fees to strike: 12/1/2020 for \$89.38, 4/5/2021 for \$134.38, 4/30/2021 for \$89.38, 5/12/2021 for \$116.08, 5/14/2021 for \$89.38, 5/18/2021 for \$116.08, 6/1/2021 for \$111.88, 1/4/2022 for \$135.20, 1/5/2022 for \$136.70, 1/12/2022 for \$93.20, 5/2/2022 for \$94.60, 5/27/2022 for \$138.20, 6/10/2022 for \$138.20.

Deposition Costs

Costs relating to the taking, video recording, and transcribing of necessary depositions are allowable. Code of Civ. Pro. § 1033.5(a)(3). Defendants have not presented evidence that the depositions were unnecessary. Even depositions of third parties can be relevant to a case, so the argument that depositions of dismissed defendants are not necessary is unavailing without additional information.

Recording Fees

Plaintiff seeks costs relating to recording documents with the government. Plaintiff notes that she was “required to file and record a lis pendens against each affected property.” Defendants do not rebut this point. These costs will be allowed.

² Indeed, given the history of this case, both before litigation and during litigation, suggests that such alternate service may have been far more expensive and ultimately unsuccessful.

Notary Fees

Plaintiff seeks notary fees. Defendants appear to concede these in their reply brief, and they will be allowed.

Transcripts

Plaintiff seeks costs relating to transcripts not ordered by the court. Transcript fees are not recoverable unless ordered by the Court.³ Plaintiff appears to concede the striking of these costs in her opposition. These costs will be stricken.

Experts

Plaintiffs appear to concede that expert fees are not allowable here. Code of Civ. Pro. § 1033.5(b)(1).

Investigation/Title Research

Plaintiffs appear to concede that investigation and title research costs are not allowable here. Code of Civ. Pro. § 1033.5(b)(2).

Postage/Telephone/Copying

Plaintiffs appear to concede that postage, telephone, and copying costs are not allowable here. Code of Civ. Pro. § 1033.5(b)(3).

The parties are directed to recompute the amount of costs awarded based on the Court's rulings and to submit new contentions no later than June 25, 2026. The matter will be continued to July 23, 2026, 9:00 a.m. The Court will not take *new arguments* not initially raised, but will only accept clarifications. If the parties stipulate to the *amount* in response to the Court's order—the Court does not expect concessions as to appealability or propriety of the orders, but simply a mathematical agreement—then the July 23, 2026 hearing may be vacated.

19. 9:00 AM CASE NUMBER: N26-0056
CASE NAME: PETITION OF: NATIONAL DEFAULT SERVICING CORPORATION
HEARING IN RE: PETITION FOR RELEASE OF SURPLUS FUNDS
FILED BY: NATIONAL DEFAULT SERVICING CORPORATION
TENTATIVE RULING:

On May 10, 2024, the subject property—1250 Summer Lane, Richmond, California—was sold at foreclosure. Petitioner, the foreclosure trustee has attempted to contact the interested party, Janelle Williams, but have been unsuccessful. Petitioner has paid outstanding liens. On January 16, 2026, the Court granted Petitioner's request to deposit undistributed surplus proceeds of the trustee's sale with the court. Notice was then sent to all potential claimants.

As of this date, the Court has received no claims to the surplus funds. The Court will now order that these surplus funds remain in trust. If there are no claims to these surplus funds for the statutory

³ "Ordered by the court" modifies "transcript," not "court reporter."